

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 11, 2023

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kylie Soden, Deputy City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. Laybourn, and pursuant to support by Dr. Aldrich and Mr. Roybal, item #28(b) was removed from Consent Agenda. Dr. Aldrich moved to approve remaining items, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on November 27, 2023. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for about 5.91 acres of land located west of Polk Avenue and north of and adjacent to E Pershing Blvd. Public comment was made by: Benard Thyarks. Comment was made by the following member of the governing body: Dr. Aldrich and Mayor Collins. There being no further comments or input, and purpose of the hearing having been met, Mayor Collins closed the hearing.

ORDINANCE –3rd READING – Creating Section 12.04.240, Mobile Storage Containers on Public Right-of-Way; Permit Required, of Chapter 12.04, Streets, Sidewalks and Driveways Generally, of Title 12, Streets, Sidewalks and Public Places, of the Municipal Code of the City of Cheyenne, Wyoming and making a conforming amendment as specified. (Postponed from November 27, 2023). Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Dr. Aldrich. Mr. White moved to amend by substitute dated December 4, 2023, seconded by Dr. Aldrich. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson and Mr. Roybal voting “no”. Mr. Segrave moved to amend subsection J to delete “For the purposes of this section, mobile storage container shall include roll off dumpsters” entirely and insert “For the purposes of this section, mobile storage shall not include roll off dumpsters”, seconded by Mr. Cook. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute, as amended, carried. Voting “yes” – all members of the governing body. Public comment was made by: Rick Fierro, Ram Trucking, Edward Ernste, Monument Homebuilders, Dan Dorsch, Executive Director, Habitat for Humanity of Laramie County, Brenda Birkle,

Executive Director, My Front Door, Joe Patterson, Homes by Guardian and Southeast Wyoming Homebuilders Association, Bruce Trembath, JEI Construction and Jason Stephen, Gateway Construction. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Mr. Roybal and Mr. Segrave. (#4531)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business and HR High-Density Residential to MUB Mixed-Use Business for land located northwest of the intersection of Dell Range Boulevard and Whitney Road. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4532)

ORDINANCE –3rd READING – Annexing to the City of Cheyenne, Wyoming, various tracts of land completely surrounded by current City limits situate in northwest Cheyenne generally located north of Dell Range Boulevard and west of Powderhouse Road. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich voting “no”. Public comment was made by: Jim Weaver. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Laybourn and Mr. Segrave. (#4533)

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classifications of AG Agricultural LR - Low Density Residential, MR - Medium Density Residential, CB - Community Business, and MUR - Mixed-Use Residential for land annexed to the City of Cheyenne generally located north of Dell Range Boulevard and west of Powderhouse Road. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4534)

ORDINANCE –2nd READING – Amending subsection 6.7.5.b of the Unified Development Code (UDC), changing building façade design requirements to reduce required windows on urban loft multifamily residential and mixed-use residential development. Mr. Cook moved to approve on second reading, seconded by Mr. Johnson. Mr. Cook moved to amend section (b)(1) to delete “Where the interior operation or program of the building warrants screening from the street, a closed display window of at least 2.5 feet deep may be substituted along up to 50% of the linear distance of the façade”, seconded by Dr. Rinne. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave voting “no”. Public comment was made by: Edward Ernste, Monument Homebuilders, Brenda Birkle, My Front Door, Ansley Mouw, Winters Griffith Architects, Dan Dorsch, Habitat for Humanity of Laramie County, Jason Stephen, Gateway Construction, Joe Patterson, Guardian Homes and Tyson Pence. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Rinne and Mr. Segrave.

ORDINANCE –2nd READING – Amending subsection 5.1.5 of the Unified Development Code (UDC), removing minimum lot area requirements for detached dwellings, semi-attached dwellings, attached dwellings, and multi-dwelling buildings. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn and Mr. Segrave voting “no”. Public comment was made by: Dan Dorsch, Habitat for Humanity of Laramie County, Brenda Birkle, My Front Door, Heath Johnson, Jason Stephen, Gateway Construction and Bruce Trembath, JEI Construction. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Dr. Rinne, Mr. Segrave and Mr. White.

ORDINANCE –2nd READING – Amending subsection 5.1.5 of the Unified Development Code (UDC), removing density requirements for multi-dwelling buildings. Mr. Cook moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn and Mr. Segrave voting “no”. Public comment was made by: Ansley Mouw, Winters Griffith Architects, Brenda Birkle, My Front Door, Jason Stephen, Gateway Construction and Dan Dorsch, Habitat for Humanity of Laramie County.

ORDINANCE –2nd READING – Amending subsection 6.2.4 of the Unified Development Code (UDC), amending Table 6-2, required automobile parking for multi-family development. Mr. Cook moved to approve on second reading, seconded by Mr. White. Mr. Cook moved to amend section (3) to strike “0.5 space per unit” and read “1.0 space per unit for studio or one bedroom”, seconded by Dr. Rinne. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave voting “no”. Public comment was made by: Jason Stephen, Gateway Construction, Brenda Birkle, My Front Door, Dan Dorsch, Habitat for Humanity of Laramie County and Edward Ernste, Monument Homebuilders. Comments were made by the following members of the governing body: Dr. Aldrich, Dr. Rinne and Mr. Segrave.

Following a brief recess, Mayor Collins reconvened the meeting at 7:51 p.m.

ORDINANCE –2nd READING – Amending Title 6, Animals, of the Municipal Code of the City of Cheyenne, Wyoming, regarding the registration, control, impoundment and general care of animals and birds within the city. Mr. Cook advised there was no recommendation from Public Services Committee. Mr. Cook moved to approve on second reading, seconded by Mr. Johnson. Dr. Aldrich moved to postpone to December 21, 2023, seconded by Mr. Esquibel. Motion to postpone carried. Voting “yes”- all members of the governing body with the exception of Dr. Aldrich and Mr. Laybourn voting “no”. Public comment was made by: Britney Tennant, CEO, Cheyenne Animal Shelter, Emily Intlekofer, Black Dog Animal Rescue and Dr. Sara Pizano, Maddies Million Pet Challenge. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Roybal and Mr. White.

ORDINANCE –1st READING – Amending Ordinance No. 4520 Defining the Terms and Conditions of Employment for Sworn Officers of the Cheyenne Police Department for Fiscal Year 2023-2024 -- referred to Finance Committee. (Sponsor – Mr. White)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located east of Polk Avenue and north of and adjacent to East Pershing Boulevard -- referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne establishing the zoning classification of AR Agricultural Residential for land annexed to the City of Cheyenne located east of Polk Avenue and north of and adjacent to East Pershing Boulevard -- referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from AR Agricultural Residential to LI Light Industrial for land located east of Polk Avenue and north of and adjacent to East Pershing Boulevard -- referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Supporting the conversion of a portion of the Dutcher Ball Fields, located at 4200 Converse Avenue, Cheyenne Wyoming from Perpetual Public Outdoor Recreation use and committing to encumber the Rotary Park property to be donated by the Cheyenne Rotary Club Foundation to include a deed restriction for Perpetual Public Outdoor Recreation use pursuant to the requirements set forth in the Land and Water Conservation Fund Act of 1965. Motion (per Consent Agenda) carried. (#6373)

[CA] RESOLUTION – Authorizing a three (3) percent cost-of-living salary adjustment for all permanent full and part-time employees of the City of Cheyenne. Motion (per Consent Agenda) carried. (#6374)

RESOLUTION – Permitting the possession of open containers within the Downtown District Boundaries for New Years Eve on December 31, 2023. Mr. White moved to adopt, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Laybourn, and Mr. Segrave voting “no”. Public comment was made by: Domenic Bravo, Visit Cheyenne. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Laybourn. (#6375)

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2024 Budget of the City of Cheyenne according to the provisions of W.S. §§16-4-112 and 16-4-113 -- referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Designating local banks as depositories for municipal funds -- referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Expressing the will of the Governing Body directing the Mayor to hire a Special Projects Manager to assist the City of Cheyenne in managing and coordinating 6th Penny Tax projects and other city project priorities as directed by the Mayor -- referred to Finance Committee. (Sponsors – Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Mr. Segrave and Mr. White)

[CA] RESOLUTION – In accordance with Section 2D of the second amended and restated Project Development and Administration Agreement between the City of Cheyenne, the Cheyenne-Laramie County Corporation for Economic Development and Granite Peak Development Limited Partnership, and pursuant to W.S. §15-1-112(b), authorizing the sale of the rails, ties and related rail equipment in the Swan Ranch Industrial Park to Granite Peak Development Limited Partnership upon determining that the sale benefits the economic development of the community -- referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing submission of the Capital Construction Loan application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the construction of water, sewer and road infrastructure to support housing for F.E. Warren Air Force Base and for economic development – referred to Finance Committee. (Sponsor – Mr. White)

[CA] Minimum Revenue Guaranteed Payment Agreement between the City of Cheyenne and the Cheyenne Regional Air Service Focus Team (CRAFT) for Fiscal Year ending June 30, 2024 (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$500,000.00). (#7873)

Professional Services Agreement between the City of Cheyenne and GSG Architecture, Inc for the Municipal Building Spatial Analysis Project (2021 Specific Purpose Option Tax Fund). Mr. White moved to approve in an amount not to exceed \$115,027.00, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mr. Laybourn. (#7874)

[CA] Purchase and Sale Agreement for property located at 813 West 23rd Street for the Reed Avenue Corridor Project (2021 Specific Purpose Option Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$161,000.00). (#7875)

[CA] Professional Services Contract between the City of Cheyenne and Lance & Hall, LLP for public defense services – referred to Finance Committee. (General Fund)

[CA] Purchase and Sale Agreement between the City of Cheyenne and Taurus Holdings, LLC for approximately 2.10 acres of vacant land west of Snyder Avenue at 7th Street and more particularly described in Exhibit A -- referred to Finance Committee. (2023-2026 Optional 1% Sales Tax Fund)

[CA] Contract Modification #1 to Contract #7770 between the City of Cheyenne and Z and Z Sealcoating, Inc. for additional material required for the 2023 Crack Seal #1 Project (2019-2022 Optional 1% Sales Tax Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$90,667.16). (#7770)

[CA] Contract Modification #1 to Contract #7775 between the City of Cheyenne and Sunrise Engineering for additional design services for the 7th Street Drainage and Access Improvements Project -- referred to Finance Committee. (2019-2022 Optional 1% Sales Tax Fund)

[CA] Contract Modification #1 to Contract #7561 between the City of Cheyenne and HDR Engineering, Inc. for additional engineering services related to the Pedestrian Traffic Safety Study and HAWK System Design Project – referred to Finance Committee. (2019-2022 Optional 1% Sales Tax Fund)

Consideration to Purchase between the City of Cheyenne and Dowdle Studios for the Commissioned Painting and Puzzles Project (General Fund Reserves). Mr. White advised there was no recommendation from Finance Committee. Mr. White moved to approve in an amount of \$150,000.00, seconded by Mr. Johnson. Motion failed. Voting “no” all members of the governing body with the exception of Mr. Johnson and Dr. Rinne voting “yes”. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne and Mr. White.

[CA] Consideration to Purchase between the City of Cheyenne and Meridian Rapid Defense Group LLC, for the purchase of an Anti-Vehicle Barrier and Trailer System for the Community Recreation and Events Department -- referred to Finance Committee. (2019-2022 Optional 1% Sales Tax Fund, 2021 Specific Purpose Option Tax Fund and Wyoming Department of Homeland Security)

[CA] Consideration to Purchase between the City of Cheyenne and Axon Enterprise, Inc., for the purchase of Axon Body 4, Body Worn Video Cameras for the City of Cheyenne Police Department -- referred to Finance Committee. (General Fund Reserves and Future Specific Purpose Option Tax Fund Ballot)

No comments were made on the Voucher Report as presented.

Announcement was made of a Public Hearing to be held December 21, 2023 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting regarding the required sale of real property and related equipment in Swan Ranch Industrial Park to Granite Peak Development Limited Partnership upon a finding of beneficial economic development.

Announcement was made that due to the Christmas holiday schedule, the regularly scheduled City Council meeting on Monday, December 25, 2023, will instead be held on Thursday, December 21, 2023 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting.

Announcement was made that a Calcutta benefitting the Breast Cancer Initiative of Wyoming, will be held on January 5 – January 6, 2024 at Peppermill Bar, 1618 Stillwater Avenue, Cheyenne, WY.

Mr. Segrave noted the motion to adopt the following Ordinance - Amending Subsections 6.6.3.b.3, 6.7.5.c, and 6.9.3.e of the Unified Development Code (UDC), changing the building façade design requirements for multifamily residential development, failed at the November 27, 2023 City Council meeting. Having voted on the prevailing side and pursuant to Chapter 2.04 of City Code, Mr. Segrave moved to reconsider the vote taken on the ordinance, seconded by Roybal. Motion to reconsider carried. Voting “yes” - all members of the governing body. Dr. Rinne moved to postpone to December 21, 2023, seconded by Mr. Segrave. Motion to postpone carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Rinne and Mr. Segrave.

The following members of the governing body made comments under other business: Dr. Aldrich, Mr. Johnson, Mr. Segrave and Mr. White.

Mr. Johnson moved to meet in executive session Pursuant to Wyoming Statutes §§16-4-405(a)(iii) and 16-4-405(a)(vii), seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body. Mayor Collins announced members would meet in executive session, not open to the public and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. The following staff members were in attendance: Stephanie Boster, City Attorney, Robin Lockman, City Treasurer, TJ Barttelbort, Purchasing Manager, Tom Cobb, City Engineer, Kylie Soden, Deputy City Clerk and Jason Sanchez, Director of Community Recreation and Events. Also present: Attorney Mark Stewart.

There being no further business to come before the governing body, the meeting was officially adjourned at 10:14 p.m.

Submitted by,

Kylie Soden,
Deputy City Clerk, CMC

This notice is available in alternative, accessible formats upon request.

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